



Montevideo Environmental Law Programme

A Decade of Action on Environmental Law





Strong environmental laws and institutions are essential for planetary health, nature, pandemic recovery, and resilience. They underpin the successful implementation of any environmental goal, policy or commitment, including the Sustainable Development Goals.



A decade of coordinated action

2020-2030 is a make or break decade for the environment, and effective action on strengthening environmental law and its implementation is critical. At the fourth United Nations Environment Assembly held in 2019, Member States agreed on an ambitious ten-year intergovernmental programme on environmental law. This is the Fifth Montevideo Environmental Law Programme and it kicks off a decade of action on environmental law.

Montevideo Environmental Law Programme guides the identification and implementation of priority actions in environmental law to be undertaken by the United Nations Environment Programme (UNEP) in partnership with key stakeholders.

It builds on the success of past Montevideo Programmes, but strengthens the programme through a global intergovernmental partnership and robust governance framework. It began on 1 January 2020 and shall run for an entire decade. ■



Vision and objectives

Montevideo Environmental Law Programme supports the development and implementation of environmental rule of law, strengthens the related capacities in countries, and contributes to the environmental dimension of the 2030 Agenda for Sustainable Development.

Its core objectives are aimed at supporting the development and implementation of adequate and effective environmental legislation and legal frameworks at all levels, enhancing environmental rule of law, and supporting related capacity building. ■



Strategic activities

To achieve its objectives, the Montevideo Environmental Law Programme:

- **Provides practical guidance, tools, innovative approaches and resources**, effective law models and approaches, as well as best practices and model indicators to countries.
- **Develops and promotes information and data exchange** amongst legal stakeholders involved in the development and implementation of environmental law.
- **Promotes public participation**, access to information and access to justice in environmental matters.
- **Promotes the recognition of the mutually reinforcing relationship** between environmental law and the three pillars of the Charter of the United Nations.
- **Supports collaboration and promotion of partnerships** across the United Nations and with other relevant entities, including civil society organizations, in the field of environmental law.
- **Encourages and facilitates education on environmental law**, with a view to empowering people and communities as well as strengthening institutional capacity of countries to address environmental issues.
- **Supports environmental law awareness-raising.**
- **Encourages research**, including studies and reports, on emerging environmental issues and the relationship between environmental law and other, related legal fields.
- **Promotes training in the field of environmental law**, especially for legal professionals such as judges and prosecutors and other enforcement officials. ■

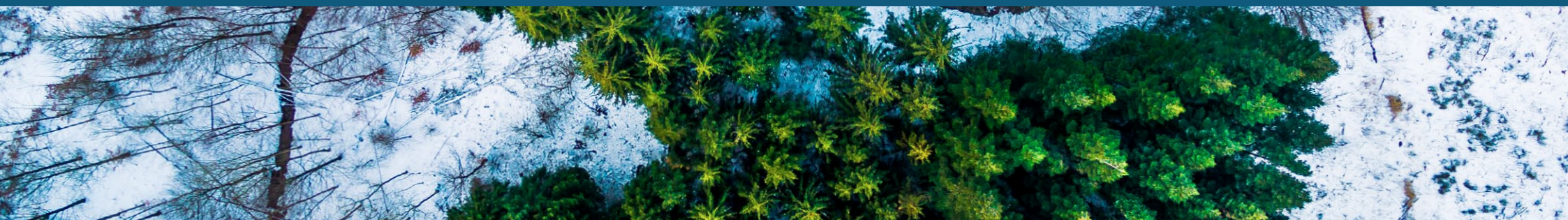


A global partnership

Every member state is invited to designate a national focal point for the programme. These national focal points collaborate with and guide UNEP in the implementation of the programme and play an important role in catalysing action to address environmental issues through the law.

The focal points also designate a steering committee for implementation, which works with UNEP in the implementation of Montevideo Environmental Law Programme. Biennial global and other relevant meetings of the national focal points and the steering committee are held to provide strategic advice, guidance

and direction to UNEP. Implementing the programme is additionally done in close partnership with other UN agencies and intergovernmental organizations, secretariats of Multilateral Environmental Agreements, academia, civil society, and the private sector. ■



Implementation guidelines

All activities under the programme are guided by implementation guidelines as follows:

- **Respond to the needs** and priorities of countries.
- **Be developed and implemented in cooperation, coordination or partnership**, as appropriate, with relevant stakeholders, promoting public participation.
- **Promote synergies** and complementarity and avoid duplication with other initiatives and activities in the field of environmental law.
- **Be grounded in science**, best practices and available data.
- **Be consistent with the environmental dimension of the 2030 Agenda for Sustainable Development** and relevant resolutions and decisions of the United Nations Environment Assembly, as well as having due regard to nationally determined priorities and relevant resolutions and decisions of other United Nations bodies and other multilateral environmental processes, including regional ones;
- **Promote gender equality** and active engagement of youth, as well as intra- and intergenerational equity.
- **Promote the application of environmental assessments** for the sustainable management and use of natural resources and the protection of the environment. ■



UNEP Law and Environment Assistance Platform

The digital backbone of the Montevideo Environmental Law Programme is UNEP's Law and Environment Assistance Platform - or UNEP-LEAP. This coordination and delivery platform allows Member States to directly request support from UNEP and partners. It additionally provides a comprehensive and searchable knowledge base of relevant environmental legislation, cases, model laws and other guidance products. ■



History

The fifth iteration of the programme follows four sequential ten-year Montevideo Environmental Law Programmes. Since 1982, these Montevideo Programmes have consistently set the strategy for UNEP's environmental law activities.

Achievements of previous Montevideo Environmental Law Programmes include:

- The term **environmental rule of law** being increasingly embedded in national legislative frameworks and judicial rulings, as a result of the UNEP Governing Council Decision 27/9.
- The enablement of many countries to open new frontiers of adjudication on environmental rights.
- Law and policy makers equipped with information to support the implementation of multilateral environmental agreements in national legislation.
- Countries supported in developing national strategic frameworks to deliver on the environmental dimension of rather than on the Sustainable Development Goals, in a coherent coordinated manner.
- Contribution to the adoption of the **Regional Agreement on Access to Information, Public Participation and Justice** in Environmental Matters in Latin America and the Caribbean- heralded as one of the most important human rights agreements of the last 20 years.
- The provision of a framework within which many multilateral environmental agreements have been conceived and negotiated under the auspices of UNEP. ■

An aerial photograph of a dense forest, showing a mix of green and brown tree canopies. A color calibration bar is visible in the bottom right corner, featuring a series of colored squares used for color accuracy in printing.

The logo of the United Nations Environment Programme (UNEP) is displayed. It features the letters "UN" in a large, bold, sans-serif font, followed by the UNEP emblem, which consists of a stylized human figure with arms raised, enclosed within a laurel wreath. Below the emblem, the words "environment" and "programme" are written in a smaller, bold, sans-serif font, stacked vertically. The entire logo is white and set against a dark blue background that features a faint, repeating pattern of fish.